IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal in terms of section 331(1) of the Code of criminal Procedure Act No. 15 of 1979.

Hon. Attorney General,
The Attorney General's Department,
Colombo 12.

Complainant

Vs

Rajapaksha Mudiyanselage Wasantha Kumara Anura Abewickrama

Accused

Court of Appeal Case No:
CA/HCC/0025/2024

High Court of Hambanthota Case No:
HC 44/2015

AND NOW BETWEEN

Rajapaksha Mudiyanselage Wasantha Kumara Anura Abewickrama

Accused-Appellant

Vs

Hon. Attorney General,
The Attorney General's Department,
Colombo 12.

Respondent

Before : **P.Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Saliya Pieris, PC with Pasindu Thilakaratne for the Accused-Appellant.

Malik Azeez, SC for the State.

Argued on : 24.11.2025

Decided on : 20.02.2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused – Appellant (hereinafter referred to as the Appellant) was indicted before the High Court of Hambanthota for committing a rape of one G.S.Madhushika on 01.08.2012, an offence punishable under section 364 (2) of the Penal Code as amended by the act number 22 of 1995.

2. The trial commenced before the High Court Judge of Hambanthota, during which six witnesses testified for the prosecution. At the conclusion of the trial, the learned High Court Judge found the appellant guilty of the charge and accordingly convicted him. The appellant was sentenced to 14 years' rigorous imprisonment and a fine of Rs. 10,000.00, with a default sentence of 10 months' rigorous imprisonment. Furthermore, the appellant was ordered to pay Rs. 100,000.00 as compensation to the victim, with a default sentence of two years' rigorous imprisonment.

3. It is against that conviction and sentence that the appellant has preferred the instant appeal. As directed by this Court, both parties have filed their respective written

submissions. During the hearing, the appellant pursued the following grounds of appeal:

a. Whether evidence of PW1 and PW2 are worthy of credit.
b. Whether the Learned High Court Judge considered the delay of making the complaint.
c. The Learned Trial Judge failed to analyzed the defence evidence.

Background to the appeal

4. During the period relevant to this incident, the prosecutrix was living with her grandmother, uncle, and aunt, as her mother had migrated when she was a child. She had previously been in a relationship with a married person named Kelum. Prior to the present incident, she had eloped with Kelum and lived with him for a couple of months, during which she had a sexual relationship with him.

5. The appellant in the present case is an exorcist who was introduced to the victim's grandmother by her aunt. When the victim was brought before the appellant, he alleged that she was pregnant and that Kelum had 'planted' something in her body. Accordingly, the appellant advised the grandmother to arrange an exorcism to remove the supposed evil from the victim.

6. On the day of the incident, the appellant came to the victim's house accompanied by another person, said to be his helper. At that time, the victim's uncle was not at home, and her aunt was in a separate room due to her advanced stage of pregnancy.

7. According to the prosecution, the incident took place at night. Acting on the instructions of the appellant, the lights were turned off, and he led the grandmother and his helper out of the house, instructing them not to return. The victim was then made to lie on a mat, after which the appellant removed her clothing and had sexual intercourse with her.

8. The victim subsequently informed her grandmother of the incident, by which time the appellant had already left the premises. Several days later, the appellant returned to

the house of the victim's aunt, and upon his return, he was apprehended by the villagers. A complaint was thereafter lodged with the police on 11.08.2012.

9. In her testimony, the victim explained how the appellant committed sexual intercourse with her and described the manner in which he caused others to leave the premises until the offence was completed.

10. After the appellant had left, the victim disclosed the incident to her grandmother. The grandmother advised her to wait until the following morning, after which she was taken to the house of one Renuka, who had introduced them to the appellant.

11. Thereafter, Renuka informed one of the victim's uncles about the incident. On a subsequent day, the victim saw the appellant coming from Renuka's compound and alerted her uncle. The appellant was then apprehended with the assistance of neighbors, and the police were informed. The victim was subsequently produced before a doctor at Hambanthota Hospital.

12. PW2, the grandmother of the victim, deposed that she first met the appellant at Renuka's place. Thereafter, she went with the victim to Renuka's house, where the victim was examined by the appellant. The appellant informed them that he would come to their house at night and instructed them to make certain preparations for performing rituals.

13. When the appellant commenced the ritual, the daughter-in-law of PW2 was asked to go into a separate room and close the door, as she was pregnant at the time. The appellant then applied some oil on the victim and instructed PW2 and his helper to move into another room.

14. During the rituals, the appellant instructed PW2 and his helper to go to the road and fetch some sand. After completing all the ritualistic procedures, the appellant demanded Rs. 5,000 as his professional fees. PW2, however, could pay only Rs. 2,000, as she did not have sufficient funds at the time. Thereafter, the appellant left the premises.

15. Thereafter, the victim informed PW2 that she had been raped by the appellant. PW2 advised the victim not to disclose the incident to anyone, assuring her that she would find a way to deal with the appellant. Sometime later, PW1 saw the appellant near Renuka's house and informed her uncle. The appellant was subsequently apprehended, and the police were notified.

16. PW6 is the Judicial Medical Officer who examined the victim and issued a medical report marked P2. He observed some old tears on the hymen of the victim. According to the Judicial Medical Officer, the victim was examined ten days after the alleged incident. Accordingly, he was of the view that no fresh injuries could be observed at that stage.

17. Nevertheless, the Judicial Medical Officer observed that there was evidence suggesting that the victim had engaged in sexual activity for a considerable period. It must be noted, however, that the victim herself admitted to having had a sexual relationship with Kelum while she was living with him.

18. PW3 is PS62429 Gamini Rathnayaka. During the relevant period, he was attached to the Thissamaharama Police and arrested the appellant on 11.08.2012, pursuant to information received over the 119 telephone line. He then proceeded to the location where the appellant was being held by the villagers. At that time, PW2 informed him that the appellant had sexually abused the victim.

19. After the conclusion of the prosecution case, the appellant made a dock statement in which he denied the allegations. He admitted, however, that he had gone to the victim's house and conducted an exorcism. More importantly, he stated that although he had requested Rs. 5,000, he was paid only Rs. 2,000 by the victim's grandmother, with a promise that the balance would be paid later.

20. The appellant further stated that when he returned on 11th August, Renuka informed him that he had not performed the ritual satisfactorily. At that time, PW2 arrived and threatened him. Thereafter, he was assaulted and subsequently arrested by the police.

21. I shall first examine whether the alleged belatedness in lodging the complaint has the effect of undermining the credibility of the prosecution case. It is well settled that

delay in making a complaint, by itself, is not fatal to the prosecution, particularly in cases of this nature, unless such delay remains unexplained or gives rise to a reasonable suspicion of fabrication. Therefore, the surrounding circumstances leading to the timing of the complaint must be carefully evaluated before drawing any adverse inference against the prosecution.

22. Apparently, there was no delay on the part of the victim, as she immediately informed her grandmother of the incident. Considering her age, as well as the previous incident she had experienced when she had eloped with a person named Kelum, it would be unreasonable to expect the victim to have independently gone to the police and lodged a complaint on her own.

23. Evidently, the victim was residing with her grandmother (PW2), who acted as her guardian in the absence of the victim's mother. It was also PW2 who had previously taken the victim to the appellant in the belief that he would perform certain exorcism rituals to cure her. Furthermore, PW2 supplied the ingredients necessary for the said ritual and facilitated the process.

24. In these circumstances, it is understandable that PW2 would not have wished the incident to become known to others unless and until the appellant was apprehended. This provides a reasonable explanation for the delay in making the complaint. More importantly, this aspect of the evidence lends assurance to the credibility of both the victim and PW2, as their conduct appears consistent with the surrounding circumstances rather than suggestive of fabrication or afterthought.

25. In ***Bandara vs State [2001] (2) Sri.L.R.63*** it was held inter alia:

> *If there is a valid reason or explanation for the delay and if the trial Judge is satisfied with the reasons and explanations given, no trial Judge would apply the test of spontaneity and contemporaneity and reject the testimony of a witness in such circumstances. 'delayed witnesses evidence could be acted upon if there were reasons to explain the delay.'*

26. Furthermore, it is pertinent to emphasize that, had PW2 and PW1 intended to fabricate a story and falsely implicate the appellant, they could have easily lodged a complaint immediately after the appellant left the premises, without waiting for his

return. Their conduct in refraining from doing so, and in acting only upon his reappearance, is inconsistent with the suggestion of a concocted or false allegation.

27. Another important fact to be noted is that the victim's grandmother had every reason to anticipate the return of the appellant, as they had paid only Rs. 2,000.00 despite the appellant having demanded Rs. 5,000.00. Further, the appellant had informed them that he would return in order to renew the amulet that had been introduced to the victim.

28. Therefore, the mere fact that the victim and PW2 waited several days before lodging a complaint with the police does not, in my view, undermine the credibility of their evidence in the context of the present case. The learned High Court Judge has adequately addressed this issue and was satisfied with the explanation offered for the delay in making the complaint.

29. For the reasons stated above, I am satisfied that the prosecution has sufficiently explained the delay in making the complaint. I shall now consider whether the testimonies of PW1 and PW2 are worthy of credence. Evidently, the victim had immediately informed PW2 of the incident of rape soon after the appellant had left. Thus, the element of prompt disclosure was present, notwithstanding the fact that PW2 did not lodge a complaint with the police until the appellant was apprehended.

30. The defence relied on certain contradictions marked as D1, D1(a), and D2. D1 relates to whether the victim had mentioned the harassment she allegedly underwent in the statement made to the Tangalle Police in connection with the issues she had with Kalum, with whom she had been living for a couple of weeks. D2 concerns whether the appellant had given her a king coconut to drink. Needless to say, none of the said contradictions are of any material significance to the case, and they do not go to the root of the prosecution case.

31. Furthermore, the defence drew the attention of Court to certain omissions in the statement of the victim. However, the learned trial Judge has adequately addressed those omissions and concluded that they do not undermine the credibility of the testimonies of the witnesses. It is evident that the learned trial Judge has sufficiently

reasoned as to why the said omissions and contradictions do not persuade the Court to disbelieve the testimony of the prosecution witnesses.

32. Lord Pearce in ***Onnassi v. Vergottis [1968] 2 Lloyds Reports 403*** stated that

> *'one thing is clear, not so much as a rule of law but rather as a working rule of common sense. A trial judge has, except on rare occasions, a very great advantage over an appellate court; evidence of a witness heard and seen has a very great advantage over a transcript of that evidence; and a court of appeal should never interfere unless it is satisfied both that the judgment ought not to stand and that the divergence of view between the trial judge and the court of appeal has not been occasioned by any demeanor of the witnesses or truer atmosphere of the trial (which may have eluded the appellate court) or by any other of those advantages which the trial judge possesses'.*

33. Similar sentiments were expressed in ***Alwis vs Piyasena Fernando [1993] (1) Sri.L.R 119*** that;

> *It is well established that findings of primary facts by a trial Judge who hears and sees witnesses are not to be lightly disturbed on appeal. The findings in this case are based largely on credibility of witnesses.*

34. In these circumstances, and in the absence of any material misdirection or perversity in the evaluation of the evidence, I see no basis to interfere with the findings of the learned trial Judge on the credibility of the prosecution witnesses

35. Upon analyzing the evidence of PW1 and PW2, it is apparent that their testimonies relating to the main incident, as well as the events leading up to it, are substantially consistent and do not disclose any material inconsistencies that go to the root of the prosecution case. In other words, there is no reason for this Court to disbelieve the evidence of PW1 and PW2.

36. This Court has also not lost sight of the manner in which the appellant compelled PW1 and persuaded both PW1 and PW2 to undergo the purported exorcism, leading them to believe that he would remove an alleged evil influence affecting the victim. The evidence further discloses that the appellant had tactfully caused his helper and

PW2 to remain away from the location until he accomplished his act. It is also evident that PW1, having encountered difficulties with the said Kalum, had returned home and was in a vulnerable and destitute situation, particularly in the absence of her mother.

37. What is discernible from the evidence of PW2 is that she was a person who believed in evil spirits, and the appellant had therefore very easily convinced her to arrange the exorcism to cure PW1, thereby taking undue advantage of their circumstances.

38. In these circumstances, it cannot reasonably be expected that PW1 and PW2 would narrate the incident with mathematical precision, particularly when the alleged incident had taken place in 2012 and the trial commenced only in 2018, nearly six years later. In such a situation, the presence of minor contradictions and omissions in the testimonies of witnesses is to be reasonably anticipated. So long as such discrepancies do not go to the root of the prosecution case, and are not of sufficient magnitude to undermine the credibility of the witnesses, the Court is entitled to act upon their evidence and safely convict the accused.

39. It is trite law and a well-settled principle of criminal jurisprudence that minor discrepancies or omissions, which do not go to the root of the prosecution's case, are to be regarded as inconsequential. It must be borne in mind that a human being cannot be expected to recount events with photographic accuracy or mechanical precision. Courts are guided by the principle that if the core of a witness's testimony carries the ring of truth and inspires confidence, minor inconsistencies ought not to detract from its probative value.

40. The true test in assessing the admissibility and reliability of a witness's evidence is not the mere presence of trivial inconsistencies, but whether the testimony, taken as a whole, resonates with credibility and truth. Only those discrepancies which impinge upon the material aspects of the case, and strike at the very heart of the prosecution narrative would render the prosecution version untrustworthy or unsafe to act upon. In assessing the credibility, courts must evaluate the intrinsic worth of the evidence rather than apply rigid or mechanical standards based solely on the status or character of the witness.

41. In ***Bandara vs State*** *(supra)* it was further held that:

> *Discrepancies and inconsistencies which do not relate to the core of the prosecution case, ought to be disregarded especially when all probabilities factor echoes in favour of the version narrated by a witness.*

42. In the present case, the learned trial Judge has analyzed and evaluated the evidence of both PW1 and PW2 in the proper perspective, having regard to the insignificance of the contradictions and omissions highlighted by the defence in their testimonies.

43. Thus, it can be safely concluded that the learned Judge's findings regarding the creditworthiness of PW1 and PW2 are consistent with well-established principles of law. Accordingly, the arguments advanced by the appellant challenging the credibility of these witnesses are devoid of merit.

44. The appellant also argued that the learned trial Judge failed to properly analyze the defence evidence, particularly his dock statement. Upon reviewing the trial Judge's analysis, it is noted that the Judge erred in stating that no suggestion was put to the witnesses by the defence regarding the payment of only Rs. 2,000 out of the Rs. 5,000 demanded by the appellant. Apart from this minor error, no other significant misdirection by the trial Judge is apparent from the judgment. In his dock statement, the appellant admitted that he was apprehended by several persons when he came to Renuka's house and was subsequently handed over to the police.

45. The learned trial Judge also considered the appellant's failure to explain certain material facts that emerged from the evidence of PW1 and PW2, and further focused on the defence's failure to challenge those facts during the cross-examination of the prosecution witnesses.

46. Hence, it is my considered view that the trial Judge carefully analyzed and evaluated the appellant's dock statement and clearly set out the reasons why it could not be accepted and why it does not create any reasonable doubt with regard to the prosecution case.

47. For the reasons aforesaid, and upon a careful consideration of the factual matrix and the applicable principles of law, I find no basis to interfere with the findings of the

learned trial Judge. Accordingly, the conviction and sentence dated 31.10.2023 imposed by the learned High Court Judge of Hambantota are hereby affirmed. I further direct that the sentence shall run with effect from the date of conviction.

48. In the result, the appeal stands dismissed.

Judge of the Court of Appeal

P. Kumararatnam,J

I agree,

Judge of the Court of Appeal